

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2025CUPP047081: EMMANUEL OSWALDO CERDA vs SO CAL SANITATION LLC  
DBA SOUTHERN CALIFORNIA INDUSTRIES, et al.**

**09/01/2026 in Department 41**

**Motion for Leave to Amend Cross Complaint**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties' copied on your email: courtroom41@ventura.courts.ca.gov.** Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

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The Court intends to rule as follows:

Cross-Complainant Julio's Auto Insurance Agency, Inc.'s Motion For Leave to File Second Amended Cross-Complaint is DENIED without prejudice. The Motion fails to comply with California Rules of Court, rule 3.1324(a).

Notice to be provided by Cross-Complainant.

**I. Background**

On July 10, 2026, plaintiff Emmanuel Oswaldo Cerda ("Plaintiff") filed a complaint (the "Complaint") against defendants So Cal Sanitation LLC; ANM Construction & Environmental Services; and Julio's Auto Insurance Agency, Inc. ("Defendants"), pleading causes of action for premises liability, general negligence and negligence per se. The Complaint alleges that "Defendant erected a fence which crossed over onto the public sidewalk and created a hazard for members of the public traversing the area. Plaintiff was riding his bicycle at the location of injury, when his head hit the same fence, covering the defendant's business store's front and the sidewalk. Plaintiff was severely injured, physically and emotionally as a result of the collision and fall. Due to the injuries sustained, Plaintiff was compelled to, and did in fact obtain the services of a medical professional." (Compl., ¶ GN-1.)

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On November 3, 2025, Defendant Julio's Auto Insurance Agency, Inc. ("Agency") filed an Answer and Cross-Complaint. On November 4, 2025, Agency filed an Amended Answer. On December 29, 2025, Agency filed a First Amended Cross-Complaint. On July 10, 2026, Agency filed this Motion for Leave to Amend Cross-Complaint. No Opposition has been filed.

The Motion for Leave to Amend Cross-Complaint is scheduled for hearing on September 1, 2026. This matter is not scheduled for trial.

## **II. Discussion**

### **A. General Rules**

Code of Civil Procedure section 473, subdivision (a)(1) states: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." Code of Civil Procedure section 576 states: "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." "There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.) "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." [Citation]. Statutes like section 473 are 'construed liberally so that cases might be tried upon their merits in one trial where no prejudice to the opposing party . . . is demonstrated.' [Citation]. Further, this liberal policy applies to amendments "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. [Citation]. (*Tung v. Chicago Title Company* (2021) 63 Cal.App.5th 734, 747.)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) "[N]evertheless, whether such an amendment shall be allowed rests in the sound discretion of the trial court. [Citations.] And courts are much more critical of proposed amendments to answers when offered after long unexplained delay or on the eve of trial (citations), or where there is a lack of diligence, or there is prejudice to the other party (citations).' [Citation]." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159).

**B. Analysis**

Agency's motion seeks to file a Second Amended Cross-Complaint against Rushing Car Wash, Rushing Family Trust and Lori Ramirez, trustee of the Rushing Family Revocable Trust Dated 09/22/88. The proposed Second Amended Cross-Complaint seeks to change the names of the trustees for the Rushing Family Revocable Trust Dated 09/22/88 from Alfred D. & Norman O. Rushing to Lori Ramirez. Agency argues that the motion is appropriate under Code of Civil Procedure, section 426.50 since the proposed amendment arises from the same transaction as the Complaint.

Cross-Complainant Agency has not, however, complied with the requirements of California Rules of Court, rule 3.1324, which provides, in relevant part, as follows:

(a) Contents of motion

A motion to amend a pleading before trial *must*:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(Emphasis added.)

Here, the Motion fails to include a copy of the proposed amendment,<sup>1</sup> what allegations in the previous pleading are to be deleted and by what page, paragraph and line number it is located and what allegations are to be added and where such amendment is located. Although the Declaration of James D. Lyon extensively discusses the procedural history of this case and provides information required under California Rules of Court, rule 3.1324, subdivision (b), it does not comply with the procedural requirements of California Rules of Court, rule 3.1324, subdivision (a). Consequently, the Motion is denied without prejudice.

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<sup>1</sup> Paragraph 14 of the James D. Lyon Declaration states that a copy of the Second Amended Complaint is attached as Exhibit G, but there is no document following the cover page for Exhibit G.